

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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YELTSIN DELEON,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. EDWARD
BATISTA, P.O. SAFAYATH JAMIL, and JOHN DOES,
1-20, unnamed and unidentified police officers at the scene,**

Defendants.
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**Index No.: 19173/09
SUMMONS**

**Plaintiff designates
BRONX County as the place
of trial**

**Basis of venue is
Plaintiff's Residence:**

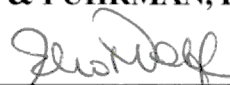
**1230 Webster Ave
Bronx, NY 10456**

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
April 19, 2024

WOLF & FUHRMAN, LLP.

By: 

ELIOT M. WOLF, ESQ.

Attorneys for Plaintiff
1453 Webster Avenue
Bronx, New York 10456
(718) 293-0980

Defendants' Addresses:

The City of New York
c/o Corporation Counsel
100 Church Street
New York, New York 10007

The New York City Police Department

One Police Plaza

New York, New York 10007

Police Officer EDWARD BAUTISTA

C/O New York City Police Department

44th Precinct

2 East 169th Street

Bronx, New York 10452

Police Officer SAFAYATH JAMIL

c/o New York City Police Department

44th Precinct

2 East 169th Street

Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
YELTSIN DELEON,

Plaintiff,

VERIFIED COMPLAINT

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. EDWARD
BATISTA, P.O. SAFAYATH JAMIL, and JOHN DOES,
1-20, unnamed and unidentified police officers
At the scene,**

Defendants.
-----X

Plaintiff, by his attorneys, WOLF & FUHRMAN, LLP, complaining of the defendants,
upon information and belief, respectfully alleges as follows:

FACTS

1. At all times hereinafter mentioned, the plaintiff, **YELTSIN DELEON**, was and still
is a resident of the City and State of New York, County of Bronx.

2. At all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**,
was and now is a municipal corporation duly organized and existing under and by virtue of the laws
of the State of New York.

3. At all times hereinafter mentioned, the defendant, **NEW YORK CITY POLICE
DEPARTMENT**, was a police agency duly organized and existing under and by virtue of the laws
of the State of New York under the contract of defendant, **THE CITY OF NEW YORK**.

4. That at all times hereinafter mentioned, the defendant **THE CITY OF NEW
YORK**, employed a police officer, known as **P.O. EDWARD BAUTISTA**, to work as a
representative of **THE CITY OF NEW YORK**, by **THE NEW YORK CITY POLICE
DEPARTMENT**.

5. That at all times hereinafter mentioned, the defendant **P.O. EDWARD BAUTISTA**, was an employee/servant, agent, and/or representative of the defendant **NEW YORK CITY POLICE DEPARTMENT**.

6. That at all times hereinafter mentioned, the defendant **THE CITY OF NEW YORK**, employed a police officer, known as **SAFAYATH JAMIL**, to work as a representative of **THE CITY OF NEW YORK**, by **THE NEW YORK CITY POLICE DEPARTMENT**.

7. That at all times hereinafter mentioned, the defendant **P.O. SAFAYATH JAMIL**, was an employee, servant, agent, and/or representative of the defendant **NEW YORK CITY POLICE DEPARTMENT**.

8. That at all times hereinafter mentioned, the defendant **THE CITY OF NEW YORK**, by the **NEW YORK CITY POLICE DEPARTMENT**, had a duty to ensure that the actions, activities, and behavior of said defendants, **P.O. EDWARD BAUTISTA**, and **P. O. SAFAYATH JAMIL**, conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

9. That at all times hereinafter mentioned, the defendant **THE CITY OF NEW YORK**, by **THE NEW YORK CITY POLICE DEPARTMENT**, had the duty to ensure that said defendants, **P.O. EDWARD BAUTISTA**, and **SAFAYATH JAMIL** as well as other P.O. in their employ who responded to the scene of the arrest, were properly trained and vetted in order to conduct themselves in such a manner so as not to intentionally, wantonly, and/or negligently result in injuries to others, including the plaintiff herein.

10. On or about June 12, 2023, and within 90 days after his causes of action arose, plaintiff, **YELTSIN DELEON**, duly presented his claims and demands for adjustment and payment in the form and manner provided by law by reason of the facts hereinafter alleged to the controller of the City of New York; that more than 30 days have elapsed since the claims upon

which the within causes of action are founded were presented to the controller for adjustment and payment and that they have neglected or refused to make any adjustment or payment thereof; and that this action was commenced on the aforesaid claims within 1 year and 90 days after the happening of the event upon which the said claims are based.

11. At all times hereinafter mentioned, the plaintiff, **YELTSIN DELEON**, did and still does reside at 1230 Webster Avenue, Bronx, New York, in the County of Bronx, City and State of New York.

12. That on or about May 23, 2023, at approximately 8:15 P.M., the plaintiff **YELTSIN DELEON**, was in his car, on Webster Avenue, near its intersection with 170th Street, in Bronx, New York.

FIRST CAUSE VOF ACTION

13. That at the aforesaid time and place, the defendant, **THE CITY OF NEW YORK**, by the **NEW YORK CITY POLICE DEPARTMENT**, its servants, agents, and/or employees arrived at the aforesaid location, and without any probable cause, detained, handcuffed, tased, used excessive and unwarranted physical force, injured the plaintiff and arrested the plaintiff, **YELTSIN DELEON**.

14. That prior to being handcuffed, plaintiff **YELTSIN DELEON** did not pose any threat to any police officer or other individual, did not act in a threatening manner or menace anyone involved or nearby to his vehicle or in the vicinity.

15. That prior to being handcuffed, plaintiff, **YELTSIN DELEON**, apprised the police officer that he would comply with any reasonable requests and he did not pose a threat to anyone.

16. That at the aforesaid time and place, the defendant police officer **EDWARD BAUTISTA**, arrived at the aforesaid location, and without any probable cause, detained, handcuffed, tased, used excessive and unwarranted physical force, injured the plaintiff and arrested

the plaintiff, **YELTSIN DELEON**.

17. That at the aforesaid time and place, the defendant **P. O. SAFAYATH JAMIL**, arrived at the aforesaid location, and without any probable cause, commanded and directed **P.O. EDWARD BAUTISTA** to detain, the plaintiff who he handcuffed, tased, used excessive and unwarranted physical force, injured the plaintiff and arrested the plaintiff, **YELTSIN DELEON**.

18. That at the aforesaid time and place, the defendants, **THE CITY OF NEW YORK**, by the **NEW YORK CITY POLICE DEPARTMENT**, its servants, agents, and/or employees, arrived at the aforesaid location, and without any probable cause, caused and coerced the plaintiff, **YELTSIN DELEON**, to be precipitated onto the sidewalk causing personal injuries to the plaintiff.

19. That at the aforesaid time and place, the defendant **P.O. EDWARD BAUTISTA**, arrived at aforesaid location, and without any probable cause, caused and/or coerced the plaintiff, **YELTSIN DELEON**, to be precipitated onto the sidewalk causing personal injuries to the plaintiff.

20. That at the aforesaid time and place, the defendant **P.O. SAFAYATH JAMIL**, arrived at aforesaid location, and without any probable cause, caused and/or coerced plaintiff, **YELTSIN DELEON**, to be precipitated onto the sidewalk causing personal injuries to the plaintiff.

21. That at all times hereinafter mentioned, the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. EDWARD BAUTISTA**, and **SAFAYATH JAMIL** as well as other P.O. in their employ who responded to the scene of the arrest, without any probable cause, detained, handcuffed, tased, used excessive and unwarranted physical force, injured the plaintiff and arrested the plaintiff, **YELTSIN DELEON**.

SECOND CAUSE OF ACTION

22. The Defendants' actions violated Plaintiff, **YELTSIN DELEON**'s, rights under sections 6 and 12 of Article I of the New York State Constitution.

THIRD CAUSE OF ACTION

23. The Defendants' actions violated Plaintiff, **YELTSIN DELEON**, rights under the common law of the State of New York to be free from false arrest, false imprisonment, malicious prosecution, and assault and battery.

FOURTH CAUSE OF ACTION

24. The Defendants have violated Plaintiff, **YELTSIN DELEON**, rights under Article 78 of New York's Civil Practice Law and section 160.50 of the New York Criminal Procedure Law.

FIFTH CAUSE OF ACTION

25. Solely as a result of the intentional, reckless and negligent behavior of **THE CITY OF NEW YORK**, by **THE NEW YORK CITY POLICE DEPARTMENT**, as foreshad, the plaintiff **YELTSIN DELEON** sustained severe physical and bodily injury; shock to his nervous system; became sick, sore, lame and disabled; sustained mental, physical and emotional injuries; required medical care, attention and treatment for his injuries; and upon information and belief, such medical care, attention and treatment may be required in the future and that his injuries may be of a permanent nature.

SIXTH CAUSE OF ACTION

26. Solely as a result of the intentional, reckless and negligent behavior of the defendant **P.O. EDWARD BAUTISTA**, as well as other P.O. in the defendant's employ who responded to the scene of the arrest, as foreshad, the plaintiff **YELTSIN DELEON** sustained severe physical and bodily injury; shock to his nervous system; became sick, sore, lame and disabled; sustained mental, physical and emotional injuries; required medical care, attention and treatment for his injuries; and upon information and belief, such medical care, attention and treatment may be required in the future and that his injuries may be of a permanent nature.

SEVENTH CAUSE OF ACTION

27. Solely as a result of the intentional, reckless and negligent behavior of the defendant **P.O. SAFAYATH JAMIL**, as foreshad, the plaintiff **YELTSIN DELEON** sustained severe

physical and bodily injury; shock to his nervous system; became sick, sore, lame and disabled; sustained mental, physical and emotional injuries; required medical care, attention and treatment for his injuries; and upon information and belief, such medical care, attention and treatment may be required in the future and that his injuries may be of a permanent nature.

EIGHTH CAUSE OF ACTION

28. At all times hereinafter mentioned, the plaintiff, **YELTSIN DELEON**, solely by reason of the carelessness, recklessness, negligence and intentional acts of the defendants as hereinbefore stated, incurred expenses for hospital treatment, medical care, treatment and attention in order to effect care of the aforesaid injuries sustained by the said plaintiff.

NINTH CAUSE OF ACTION

29. Upon information and belief, plaintiff, **YELTSIN DELEON**, will in the future be required to expend sums of money in the treatment of the injuries sustained by the said plaintiff, **YELTSIN DELEON**.

TENTH CAUSE OF ACTION

30. Solely by reason of the defendants' carelessness, recklessness, negligence and intentional acts, as aforestated, the plaintiff, **YELTSIN DELEON**, has been damaged in an amount that exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

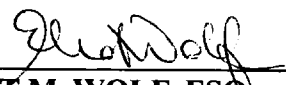
ELEVENTH CAUSE OF ACTION

31. That the actions of the defendants as described herein were wanton, knowing, and/or grossly negligent and whose actions were grossly indifferent to the public and are of the sort which warrants a finding of punitive damages against said defendants so as to discourage such conduct and/or behavior from occurring again so as to benefit the public at large.

WHEREFORE, plaintiff demand judgment against the defendants in all causes of actions in an amount that exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction together with costs and disbursements of this action.

Dated: Bronx, New York
April 19, 2024

WOLF & FUHRMAN, LLP.

BY: 
ELIOT M. WOLF, ESQ.
Attorneys for Plaintiff
1453 Webster Avenue
Bronx, New York 10456
(718) 293-0980

VERIFICATION

Yetsin DeLeon, the plaintiff in the present action, affirms the following under the penalty of perjury:

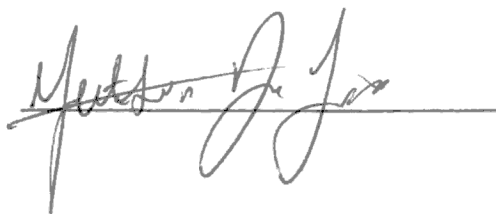
I am the plaintiff in the present action. I have read the foregoing Complaint, and know the contents thereof, and upon information and belief your affirmant believes the matters therein alleged to be true.

I reside in the same county in which this action will be adjudicated.

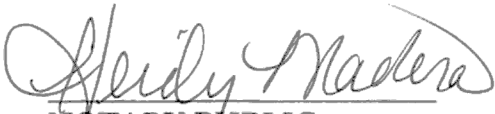
The source of your affirmant's information and the grounds of these beliefs are my personal knowledge of the events except for those medical assertions which are made upon information and belief.

Dated: Bronx, New York

April 19, 2024



Sworn to before me
This 19th day of April, 2024


NOTARY PUBLIC

